

**Writ – C No. 29852 of 2012**

Garib Das

**vs.**

State of U.P. and Others

**Hon'ble Sheo Kumar Singh, J.****Hon'ble Ram Surat Ram (Maurya), J.**

1. Heard Sri G.P. Tiwari for the petitioner and Standing Counsel and Sri R.S. Umrao holding brief of Sri. A.L. Yadav for the respondents.
2. This writ petition has been filed for quashing the recovery citation dated 29.02.2012 which has been issued for realization of Rs. 50,575/- from the petitioner and for a mandamus directing Executive Engineer (respondent 4) to decide the application of the petitioner for permanent disconnection of the electricity connection and to accept the dues from him in installments.
3. It is alleged that the petitioner took electricity connection for domestic purposes in his village Salarpur, post office Srinagar, district Mahoba and was regularly paying it's bills. From the year 2009, the petitioner began to reside at mohalla Ghandhinagar, Mahoba city and is not using electricity in the village. On 15.12.2009, the petitioner moved an application for permanent disconnection of the electricity connection of village Salarpur before respondent-4. But respondent-4 has not done the needful, accordingly, the bills have been sent in the names of the petitioner although the petitioner has already applied for permanent disconnection and was not using the electricity in the village.
4. The counsel for the petitioner submits that the petitioner is ready to pay the amount of bills. As he was residing at Mahoba city as such no bill was ever served to him. As he has already applied for permanent disconnection as such he did not take any care in this respect. Now recovery of heavy amount is being done. Due to poor financial condition, the petitioner is not able to pay the entire outstanding dues at a time. In case, if he is allowed to pay the outstanding dues in easy installments, he will be able to deposit the entire outstanding dues. The counsel for the respondents submits that the department is interested in realization of the

dues. In case the petitioner is ready to pay the dues in installments, then the department will have no objection.

5. Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 makes a provision that Executive Engineer or any officer higher in rank to him, may extend the facility of installment to those customers who are in financial distress position. Since the petitioner is ready to pay the outstanding dues, accordingly, in view of the aforesaid provision, it is provided that the petitioner may pay the entire arrears of the bills in three equal installments, first installment of which shall be paid on or before 31.7.2012, the second installment be paid up to 30.9.2012 and the third and final installment be paid up to 30.11.2012. In case the petitioner pays the installments regularly in time, then 50% of collection charges be waived. In case of default in payment of the amount of any installment, the respondents will be free to recover the entire amount from the petitioner.

6. In view of the aforesaid direction, the recovery proceeding is stayed up to 31.7.2012. In case the petitioner deposits the first installment, then the stay order shall continue up to the date of deposit of the second installment and on deposit of the second installment, it shall continue till the date of deposit of the third and final installment.

7. Since the petitioner has already applied for permanent disconnection of the electricity connection on 15.12.2009, therefore, respondent-4 shall finalize the matter relating to permanent disconnection, preferably within a period of 15 days from the date of receipt of a certified copy of this order and complete all formalities in this respect.

8. With the aforesaid direction, the writ petition is **disposed of**.

**Order dt: 07/06/2012**

**Jaideep/-**